

1 ENGROSSED SENATE
2 BILL NO. 80

By: Standridge, Bergstrom,
Sacchieri, and Jett of the
Senate

3
4 and

5 Staires of the House
6

7 An Act relating to the Oklahoma Turnpike Authority;
8 amending 69 O.S. 2021, Section 1705, as amended by
9 Section 572, Chapter 486, O.S.L. 2025 (69 O.S. Supp.
10 2025, Section 1705), which relates to the powers and
11 duties of the Oklahoma Turnpike Authority; removing
12 authorization for Authority for construction at
13 certain locations; altering location of certain
14 authorized construction; requiring Authority to hold
15 certain public meetings; requiring submission of
16 certain reports; allowing Authority to hold certain
17 additional public meetings; requiring Authority to
18 submit certain approval of the Transportation
19 Commission; providing that legislative authorization
20 for new turnpike locations terminates after certain
21 time period unless Authority takes certain action;
22 allowing for certain property owners to receive
23 certain compensation; allowing for the Authority to
24 promulgate certain rules; updating statutory
language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 69 O.S. 2021, Section 1705, as
amended by Section 572, Chapter 486, O.S.L. 2025 (69 O.S. Supp.
2025, Section 1705), is amended to read as follows:

Section 1705. The Oklahoma Turnpike Authority is hereby
authorized and empowered:

1 (a) To adopt bylaws for the regulation of its affairs and
2 conduct of its business.

3 (b) To adopt an official seal and alter the same at pleasure.

4 (c) To maintain an office at such place or places within the
5 state as it may designate.

6 (d) To sue and be sued in contract, reverse condemnation,
7 equity, mandamus, and similar actions in its own name, plead and be
8 impleaded; provided, that any and all actions at law or in equity
9 against the Authority shall be brought in the county in which the
10 principal office of the Authority shall be located, or in the county
11 of the residence of the plaintiff, or the county where the cause of
12 action arose. All privileges granted to the Authority and duties
13 enjoined upon the Authority by the provisions of Sections 1701
14 through ~~1734~~ 1736 of this title may be enforced in a court of
15 competent jurisdiction in an action in mandamus.

16 (e) To construct, maintain, repair, and operate turnpike
17 projects and highways, with their access and connecting roads, at
18 such locations and on such routes as it shall determine to be
19 feasible and economically sound; provided, that until specifically
20 authorized by the Legislature, the Authority shall be authorized to
21 construct and operate toll turnpikes only at the following
22 locations:

23 (1) The Turner Turnpike between Oklahoma City and Tulsa.
24

1 (2) The Southwestern (H.E. Bailey) Turnpike between Oklahoma
2 City and Wichita Falls, Texas.

3 (3) The Northeastern (Will Rogers) Turnpike between Tulsa and
4 Joplin, Missouri.

5 (4) The Eastern (Indian Nation) Turnpike between Tulsa
6 Henryetta and Paris, Texas, including all or any part thereof
7 ~~between McAlester and the Red River south of Hugo.~~

8 (5) The Cimarron Turnpike between Tulsa and Interstate Highway
9 35 north of Perry, including a connection to Stillwater.

10 (6) The Muskogee Turnpike between Broken Arrow and Interstate
11 Highway 40 west of Webbers Falls.

12 (7) ~~All or any part of an extension of the Muskogee Turnpike,~~
13 ~~beginning at a point on Interstate Highway 40 near the present south~~
14 ~~terminus of the Muskogee Turnpike, and extending in a southeasterly~~
15 ~~direction on an alignment near Stigler, Poteau and Heavener to the~~
16 ~~vicinity of the Arkansas State Line to furnish access to Hot~~
17 ~~Springs, Texarkana, Shreveport and New Orleans.~~

18 ~~(8) A tollgate on the Turner Turnpike in the vicinity of~~
19 ~~Luther, Oklahoma, and in the vicinity of the intersection of State~~
20 ~~Highway 33 and Turner Turnpike in Creek County, Oklahoma, or in the~~
21 ~~vicinity of the intersection of State Highway 33 and Turner Turnpike~~
22 ~~or U.S. Highway 66 in Creek County, Oklahoma, from any monies~~
23 ~~available to the Authority.~~

1 ~~(9) Add on the Will Rogers Turnpike a northbound automatic~~
2 ~~tollgate onto State Highway 28 and a southbound on-ramp from State~~
3 ~~Highway 28.~~

4 ~~(10) A turnpike (Chickasaw Turnpike) or any part or parts~~
5 ~~thereof beginning in the vicinity of Duncan extending east to the~~
6 ~~vicinity of the City of Davis, and extending in a northeasterly~~
7 ~~direction, by way of to the vicinity of the City of Ada, to a~~
8 ~~connection in the vicinity of Henryetta or in the vicinity of the~~
9 ~~intersection of State Highway 48 and Interstate 40; and a turnpike~~
10 ~~or any part or parts thereof from the vicinity of Snyder extending~~
11 ~~north to the vicinity of Woodward.~~

12 ~~(11) A turnpike or any part or parts thereof beginning at a~~
13 ~~point in the vicinity of Ponca City, or at a point on the Kansas-~~
14 ~~Oklahoma state boundary line east of the Arkansas River and west of~~
15 ~~the point where Oklahoma State Highway No. 18 intersects said state~~
16 ~~boundary line, and extending in a southeasterly direction to a~~
17 ~~connection with the Tulsa Urban Expressway System in the general~~
18 ~~area of the Port of Catoosa.~~

19 ~~(12) All or any part of an Oklahoma City toll expressway system~~
20 ~~connecting the residential, industrial and State Capitol Complex in~~
21 ~~the north part of Oklahoma City with the residential, industrial and~~
22 ~~Will Rogers World Airport Complex in the south and southwest parts~~
23 ~~of Oklahoma City.~~

1 ~~(13) A turnpike (The Industrial Parkway) or any part or parts~~
2 ~~thereof beginning at a point on the Oklahoma-Kansas state boundary~~
3 ~~line between the point where U.S. Highway 66 intersects the boundary~~
4 ~~line and the northeast corner of Oklahoma and ending by means of a~~
5 ~~connection or connections with Shreveport, Louisiana, and Houston,~~
6 ~~Texas, in southeastern Oklahoma and at no point to exceed thirty~~
7 ~~(30) miles west of the Missouri or Arkansas border.~~

8 ~~(14) A turnpike or any part or parts thereof beginning in the~~
9 ~~vicinity of Velma or County Line to a point intersecting with~~
10 ~~Interstate 35 in the area south of Davis.~~

11 ~~(15) A turnpike or any part or parts thereof beginning in the~~
12 ~~vicinity of Watonga and extending south and/or east to the vicinity~~
13 ~~of north and/or west Oklahoma City.~~

14 ~~(16) A tollgate on the Will Rogers Turnpike near the~~
15 ~~intersection of State Highway 137 and the Will Rogers Turnpike,~~
16 ~~located south of Quapaw.~~

17 ~~(17) A tollgate on the Muskogee Turnpike in the vicinity of~~
18 ~~Porter, Oklahoma, a tollgate on the Will Rogers Turnpike in the~~
19 ~~vicinity of Adair, Oklahoma, a tollgate on the Turner Turnpike in~~
20 ~~the vicinity of Luther, Oklahoma, and a tollgate on the H.E. Bailey~~
21 ~~Turnpike at Elgin, Oklahoma, from any monies available to the~~
22 ~~Authority.~~

23 ~~(18) A tollgate on the Turner Turnpike in the vicinity of~~
24 ~~Wellston, Oklahoma, from any monies available to the Authority.~~

1 ~~(19) A tollgate on the Muskogee Turnpike in the vicinity of~~
2 ~~Brushy Mountain, Oklahoma, and in the vicinity of Elm Grove,~~
3 ~~Oklahoma, from any monies available to the Authority.~~

4 ~~(20)~~ (8) All or any part of an Oklahoma City Outer Loop
5 expressway system beginning in the vicinity of ~~I-35~~ Interstate 35
6 and the Turner Turnpike and extending west into Canadian County and
7 then south to ~~I-40~~ Interstate 40; and then south and east to ~~I-35~~
8 Interstate 35 in the vicinity of Moore and Norman; and then
9 extending east and north to ~~I-40~~ Interstate 40 east of Tinker Field;
10 and then extending north to the Turner Turnpike to complete the
11 Outer Loop.

12 ~~(21)~~ (9) All or any part of the Tulsa south bypass expressway
13 system (Creek Turnpike) beginning in the vicinity of the Turner
14 Turnpike near Sapulpa and extending south and east to U.S. Highway
15 75 in the vicinity of 96th Street to 121st Street; and then east
16 across the Arkansas River to a connection with the Mingo Valley
17 Expressway; and then south ~~and/or~~ or east to a point on the Tulsa-
18 Wagoner ~~County Line~~ county line near 131st Street south in the ~~city~~
19 City of Broken Arrow.

20 ~~(22)~~ (10) A new turnpike (Creek Turnpike) or any part thereof
21 from near the west gate of the Will Rogers Turnpike south to the
22 west end of south Tulsa Turnpike at the Tulsa-Wagoner ~~County Line~~
23 county line.
24

1 ~~(23)~~ (11) A new turnpike (Cherokee Turnpike) or any parts
2 thereof from the vicinity of the connection between ~~State~~ U.S.
3 Highway ~~33~~ 412 and U.S. Highway 69 easterly to the Arkansas ~~State~~
4 Line state line.

5 ~~(24)~~ A four lane extension of the Muskogee Turnpike from
6 Interstate Highway 40 west of Webbers Falls to the Poteau vicinity.

7 ~~(25)~~ A new turnpike or any part or parts thereof beginning at a
8 point in the vicinity of northwest Tulsa, and extending in a
9 northwesterly direction, by means of a connection or connections
10 with the cities of Pawhuska and Newkirk, to a point intersecting in
11 the vicinity of U.S. Highway No. 77 and the Kansas State Line.

12 ~~(26)~~ A full access interchange on the Indian Nation Turnpike
13 south of Interstate 40, in the vicinity of Henryetta, Oklahoma, and
14 in the vicinity of the proposed theme park, museum or an industrial
15 facility which qualifies for the Oklahoma Quality Jobs Program Act,
16 from any monies available to the Authority.

17 ~~(27)~~ A new turnpike beginning at a point directly west of the
18 Arkansas line and four laning Highway 70 from that point to the
19 farthest western reach of Highway 70 creating a southern route
20 through Oklahoma.

21 ~~(28)~~ (12) A new turnpike and bridge or any parts thereof from a
22 point in the vicinity of the ~~city~~ City of Mustang southerly across
23 the South Canadian River to the H.E. Bailey Turnpike in the vicinity
24 of the ~~city~~ City of Tuttle; and then easterly across the South

1 Canadian River to a point in the vicinity of the ~~city~~ City of
2 Norman.

3 ~~(29) A new turnpike or any parts thereof beginning at a point~~
4 ~~in the vicinity of the city of Altus and extending in a~~
5 ~~northwesterly direction to a point in the vicinity of the city of~~
6 ~~Sayre.~~

7 ~~(30) A new turnpike or any parts thereof beginning at a point~~
8 ~~in the vicinity of the city of Enid and extending in a westerly~~
9 ~~direction to a point in the vicinity of the city of Woodward.~~

10 ~~(31) An on- and off-ramp or any parts thereof at Fletcher,~~
11 ~~Oklahoma, in the vicinity of the Interstate 44 and State Highway 277~~
12 ~~intersection. Any existing on- or off-ramp or any parts thereof in~~
13 ~~the vicinity of Fletcher, Oklahoma, shall not be removed and shall~~
14 ~~be maintained pursuant to Section 1701 et seq. of this title.~~

15 ~~(32)~~ (13) A new bridge crossing the Arkansas River ~~between~~
16 ~~South Delaware Avenue and Memorial Drive in Tulsa County~~ in the
17 vicinity of the City of Bixby. ~~This project shall commence upon a~~
18 ~~determination by the Oklahoma Transportation Authority that such~~
19 ~~bridge shall be self-sufficient at some point over a thirty-year~~
20 ~~time period from the toll charges associated with the bridge~~
21 ~~project.~~

22 ~~(33) An exit ramp or any parts thereof from the eastbound lane~~
23 ~~of the Turner Turnpike at 96th Street in Tulsa.~~

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1 ~~(34) An on and off-ramp or any parts thereof on the Cimarron~~
2 ~~Turnpike in the vicinity of the northside of the Glencoe, Oklahoma,~~
3 ~~municipal limits.~~

4 ~~(35)~~ (14) A new turnpike (Gilcrease Expressway) or any parts
5 thereof beginning at Interstate 44 at or near its intersection with
6 49th West Avenue, past ~~State~~ U.S. Highway 64/412, turning
7 northeasterly, crossing 41st West Avenue, and continuing eastward to
8 the L.L. Tisdale Expressway in Tulsa, Oklahoma.

9 The Authority shall publish a notice in a newspaper of general
10 circulation in the vicinity of an authorized turnpike project that
11 states that the Authority is seeking to commence project design on
12 the route. Such notice shall be published prior to seeking any
13 contract for the design of a new route of an authorized turnpike
14 project. Such notice shall be published for four (4) consecutive
15 weeks. The Authority shall also publish and maintain such notice on
16 its website for no less than four (4) consecutive weeks.

17 The Authority's approval of any contract to undertake the design
18 of a new route of an authorized turnpike project shall take place in
19 an open and public meeting held in compliance with the Oklahoma Open
20 Meeting Act. After such meeting, the Authority shall:

21 (A) Within ninety (90) days, submit a report
22 electronically to the Governor, the members of the
23 Legislature, and to the elected officials of any city
24 or county where the new route shall be located,

1 inclusive of conceptual project maps and preliminary
2 project details. Such report shall also be published
3 on the website of the Authority,

4 (B) Within one hundred twenty (120) days, schedule and
5 hold a formal public meeting to provide a description
6 of the new route and preliminary project details,
7 including the approximate location, scope of work, and
8 design elements.

9 (i) Notice of the public meeting shall be given
10 electronically by posting on the Authority's
11 official website and by publication in a
12 newspaper of general circulation in the county
13 where the new route, or a major part of it, is to
14 be located. The notice to be published in a
15 newspaper of general circulation shall be
16 published in four consecutive weekly issues of
17 the newspaper, with the first publication to be
18 at least thirty (30) days prior to the public
19 meeting date. In addition to such notices, the
20 Authority shall make a good-faith effort to
21 provide notice to all known property owners
22 within one-half (1/2) mile on each side of the
23 new route. The Authority shall use its
24 discretion in selecting the method to provide the

1 notice to property owners, considering the number
2 and types of property interests of such owners.

3 (ii) The public meeting shall be held at a convenient
4 location that is as near to the new route as
5 practical.

6 (iii) At the public meeting, any person may submit
7 oral or written statements and data about the new
8 route. Reasonable limits may be set upon the
9 time allowed for oral statements.

10 (iv) The Authority shall also collect public comments
11 through an online portal with links to the portal
12 shared at the public meeting and on the website
13 of the Authority. Such online portal shall be
14 open for use by the public thirty (30) days prior
15 to the public meeting,

16 (C) Within thirty (30) days of the public meeting, provide
17 an electronic report to the Governor, the Legislature,
18 and the Transportation Commission summarizing the oral
19 and written statements presented at the meeting, in
20 addition to any data received, including any economic
21 impact reports and support or opposition to a route
22 offered by cities and counties where the new route is
23 to be located, and

1 (D) If the location of a new route changes based on the
2 results of the public meeting provided for in division
3 (C) of this subparagraph, electronically report such
4 changes to the Governor, the Legislature, the
5 Transportation Commission, and to the elected
6 officials of cities and counties where the new route
7 will be located. Additional public meetings,
8 conducted in accordance with the provisions of
9 division (C) of this subparagraph, may be scheduled at
10 the Authority's discretion.

11 Prior to the completion of the design of a new route of an
12 authorized turnpike project, the Authority shall electronically
13 submit to the Governor, the Legislature, and to the elected
14 officials of cities and counties where the new route will be
15 located, the independent approval of the Transportation Commission
16 as provided in Section 1701 of this title.

17 Legislative authorization for any new turnpike location enacted
18 after the effective date of this act, shall terminate five (5) years
19 after the effective date of the act authorizing such turnpike,
20 unless the Authority has, in an open and public meeting held in
21 compliance with the Oklahoma Open Meeting Act, approved a contract
22 to commence project design.

1 All access roads, interchanges, or lead roads connecting such
2 turnpikes with existing highways must be built by funds furnished by
3 the Authority.

4 The minimum and maximum wages for the construction of the roads,
5 highways and projects provided for in Sections 1701 through ~~1734~~
6 1736 of this title shall be in accordance with the schedules of
7 wages used or adopted by the Commission in construction of state
8 highways.

9 The Authority is hereby authorized to enter into contracts or
10 agreements with agencies and instrumentalities of other states or
11 the national government for construction, maintenance, and operation
12 of interstate turnpikes or highways.

13 ~~The Authority is hereby required to construct and install~~
14 ~~automatic tollgates on the Will Rogers Turnpike at State Highway No.~~
15 ~~28 near Adair.~~

16 (f) To issue turnpike revenue bonds of the Authority, payable
17 solely from revenues, including the revenues accruing to the trust
18 fund created by Sections 1701 through ~~1734~~ 1736 of this title, for
19 the purpose of paying all or any part of the cost of any one or more
20 turnpike projects. Provided, that any bonds issued for the
21 construction of the proposed turnpike referred to in subparagraphs
22 ~~(10)~~ (7), ~~(20)~~ (8), ~~(21)~~ (9), and ~~(22)~~ (10) of paragraph (e) of this
23 section shall be issued as one issue for all four of the proposed
24

1 turnpikes and shall be financed, constructed and operated under one
2 bond indenture.

3 (g) To fix and revise from time to time tolls for the use of
4 any turnpike projects.

5 Any common carrier having authority at the time of opening any
6 turnpike project to operate upon a highway approximately paralleling
7 the turnpike project shall be granted without further showing
8 authority to operate over the turnpike project to all municipalities
9 which such carrier is serving at the time the turnpike project is
10 opened to traffic. But nothing herein shall be construed as
11 granting any new operation rights to any common carriers.

12 (h) To acquire, hold, and dispose of real and personal property
13 in the exercise of its powers and the performance of its duties.

14 (i) To acquire in the name of the Authority by purchase or
15 otherwise on such terms and conditions and in such manner as it may
16 deem proper, or by exercise of the right of condemnation in manner
17 hereinafter provided, such public or private lands, including public
18 parks, playgrounds, or reservations, or parts thereof or rights
19 therein, rights-of-way, property, rights, easements, and interests,
20 as it may deem necessary for carrying out the provisions of Sections
21 1701 through ~~1734~~ 1736 of this title; provided, that all public or
22 private property damaged in carrying out the powers granted by
23 Sections 1701 through ~~1734~~ 1736 of this title shall be restored or
24 repaired and placed in its original condition as nearly as

1 practicable and the owner of such property be compensated in
2 accordance with the provisions of Sections 1706 through 1708 of this
3 title.

4 (j) To designate, except as is provided for herein, the
5 location, and establish, limit, and control such points of ingress
6 to and egress from each turnpike project as may be necessary or
7 desirable in the judgment of the Authority to insure the proper
8 operation and maintenance of such project, and to prohibit entrance
9 to such project from any point or points not so designated.

10 (k) To make and enter into all contracts and agreements
11 necessary or incidental to the performance of its duties and the
12 execution of its powers, and to employ consulting engineers,
13 attorneys, accountants, construction and financial experts,
14 superintendents, managers, and such other employees and agents as
15 may be necessary in its judgment, and to fix their compensation;
16 provided, that all such expenses shall be payable solely from the
17 proceeds of turnpike revenue bonds issued under the provisions of
18 Sections 1701 through ~~1734~~ 1736 of this title or from revenues;
19 provided, further, no attorney employed by the Authority, nor any
20 member of any law firm of which the attorney may be connected, shall
21 ever be paid any fee or compensation for any special or
22 extraordinary services.

23 (l) To receive and accept from any federal agency grants for or
24 in aid of the construction of any turnpike project, provided, the

1 acceptance of such grants will not reduce the amount of federal aid
2 for the construction, repair, or maintenance of farm-to-market roads
3 and other highways and bridges in this state; and to receive and
4 accept aid or contributions from any source of either money,
5 property, labor, or other things of value, to be held, used, and
6 applied only for the purposes for which such grants and
7 contributions may be made.

8 (m) To adopt such rules, and to do any and all things necessary
9 to comply with rules, regulations, or requirements of the ~~Bureau of~~
10 ~~Public Roads, Multistate Economic Development Regional Commission,~~
11 ~~as defined in Sections 1151 through 1153, inclusive, of Title 74 of~~
12 ~~the Oklahoma Statutes, Ozarka Region Commission~~ Federal Highway
13 Administration or any other federal agency administering any law
14 enacted by the Congress of the United States to aid or encourage the
15 construction of highways.

16 (n) To do all things necessary or convenient to carry out the
17 powers expressly granted in Sections 1701 through ~~1734~~ 1736 of this
18 title. The design standards for all paving shall comply with the
19 design standards of the American Association of State Highway and
20 Transportation Officials as modified by the ~~Oklahoma~~ Department of
21 Transportation. All contracts for construction work on turnpike
22 projects shall be let to the lowest responsible bidder, or bidders,
23 after notice by publication in a newspaper published in the county
24 where the work is to be done in two consecutive weekly issues of the

1 newspaper. In all cases where more than eight (8) miles of
2 construction is let at the same time and is not an advertisement for
3 a surface-treatment-only project, such advertisement shall provide
4 for bids on sections of the turnpike not to exceed eight (8) miles.
5 If the project advertised is a surface-treatment-only project of
6 more than twenty (20) miles of road, the advertisement shall provide
7 for bids on sections of the road no longer than twenty (20) miles,
8 as well as bids on the project as a whole. Subject to the following
9 restrictions and limitations, the Authority shall, when contracting
10 for construction work, divide such work into paving projects, bridge
11 projects, including underpasses and overpasses, and earthmoving or
12 miscellaneous projects, according to the type of work to be done.
13 Each project shall be let under a separate contract or contracts and
14 no contract or project shall include more than one of such types of
15 construction work. Each contract for construction work shall
16 contain a provision that ninety percent (90%) of all labor employed
17 on the project shall be residents of Oklahoma. However, contracts
18 for bridges may include earthwork and structures for the approaches
19 thereto.

20 (o) To adopt such rules, and to do any and all things necessary
21 to comply with all applicable federal and state laws and permits
22 related to the design, construction, maintenance, and operation of
23 turnpike projects authorized by this section.
24

1 (p) It shall be unlawful for any member, officer or employee of
2 the Authority to transact with the Authority, either directly or
3 indirectly, any business for profit of such member, officer, or
4 employee; and any person, firm, or corporation knowingly
5 participating therein shall be equally liable for violation of this
6 provision.

7 The term "business for profit" shall include, but not be limited
8 to, the acceptance or payment of any fee, commission, gift, or
9 consideration to such member, officer, or employee.

10 Violation of this provision shall constitute a Class D1 felony
11 offense punishable by incarceration as provided for in subsections B
12 through F of Section 20N of Title 21 of the Oklahoma Statutes, or a
13 fine of not less than Five Hundred Dollars (\$500.00) and not more
14 than Five Thousand Dollars (\$5,000.00), or both such imprisonment
15 and fine.

16 ~~(p)~~ (q) In the event of a national emergency, the Authority,
17 subject to any vested rights or claims, may enter into contracts
18 with the federal government or any authorized agency thereof to
19 allow the federal government or agency thereof to use such turnpikes
20 partly or exclusively during the existence of such emergency,
21 provided, that the federal government agrees in such contract to
22 pay, during the term of such contract, an amount sufficient, when
23 added to any tolls collected, to meet all operating and maintenance
24 expenses, interest payments, and the minimum sinking fund and

1 reserve requirements of the trust agreement for the turnpike covered
2 by the contract.

3 ~~(a)~~ (r) All meetings of the Authority shall be open public
4 meetings, and all records shall be public records, except when
5 considering personnel or litigation.

6 SECTION 2. This act shall become effective November 1, 2026.

7 Passed the Senate the 23rd day of March, 2026.

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9

Presiding Officer of the Senate

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11 Passed the House of Representatives the ____ day of _____,
12 2026.

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Presiding Officer of the House
of Representatives

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